

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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PEARLA LYONS,

Plaintiff,

– against –

**COMPLAINT**

CITY OF NEW YORK, P.O. WILLIAM PUGLIESI (SHIELD 12760), CAPT. CONWELL, SGT. DAVID ZAYAS, P.O. CHRISTIAN VILICIS, P.O. JOSE DELGADO, SGT. RYAN HABERMEHL, SGT. JAMES GATTO, P.O. SALVATORE RIZZO, P.O. SAUL DELACRUZ, P.O. PETER CHIFOLO, P.O. JOSEPH CALABRESE, and JOHN DOES 1-5,

Defendants.

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Plaintiff Pearla Lyons, by her attorneys, Mark A. Marino, PC, for her Complaint against Defendants City of New York, P.O. William Pugliesi (Shield 12760), Capt. Conwell, Sgt. David Zayas, P.O. Christian Vilicis, P.O. Jose Delgado, Sgt. Ryan Habermehl, Sgt. James Gatto, P.O. Salvatore Rizzo, P.O. Saul Delacruz, P.O. Peter Chifolo, P.O. Joseph Calabrese, and John Does 1-5 (collectively, “Defendants”), alleges as follows, upon personal knowledge and upon information and belief:

**JURISDICTION AND VENUE**

1. This Court has jurisdiction over the parties pursuant to New York’s Civil Practice Law and Rules (“CPLR”) §301.
2. Venue in this county is proper pursuant to CPLR §503 and §504(3), as the incidents giving rise to this action occurred in this county and the plaintiff resides in this county.
3. Plaintiff Pearla Lyons demands judgment against Defendants in an amount exceeding the jurisdiction of all lower courts.

**PARTIES**

4. Plaintiff Pearla Lyons (hereinafter, "Plaintiff") is, and was at the time of the incidents giving rise to this action, a resident of the County of Kings, State of New York.

5. Defendant City of New York is, and was at the time of the incidents giving rise to this action, a municipal corporation duly organized under, and existing by virtue of, the laws of the State of New York.

6. Defendant P.O. William Pugliesi (Shield 12760) was, at the time of the incidents giving rise to this action, a police officer employed by the New York City Police Department (the "NYPD") (and Defendant City of New York) in the NYPD's 67th Precinct with Shield Number 12760 ("Pugliese"). Upon information and belief, Defendant Pugliesi was the arresting officer.

7. Defendant Capt. Conwell was, at the time of the incidents giving rise to this action, a captain employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Conwell").

8. Defendant Sgt. David Zayas was, at the time of the incidents giving rise to this action, a sergeant employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Zayas").

9. Defendant P.O. Christian Villicis was, at the time of the incidents giving rise to this action, a police officer employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Villicis").

10. Defendant P.O. Jose Delgado was, at the time of the incidents giving rise to this action, a police officer employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Delgado").

11. Defendant Sgt. Ryan Habermehl was, at the time of the incidents giving rise to this action, a sergeant employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Habermehl").

12. Defendant Sgt. James Gatto was, at the time of the incidents giving rise to this action, a sergeant employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Gatto").

13. Defendant P.O. Salvatore Rizzo was, at the time of the incidents giving rise to this action, a police officer employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Rizzo").

14. Defendant P.O. Saul Delacruz was, at the time of the incidents giving rise to this action, a police officer employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Delacruz").

15. Defendant P.O. Peter Chifolo was, at the time of the incidents giving rise to this action, a police officer employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Chifolo").

16. Defendant P.O. Joseph Calabrese was, at the time of the incidents giving rise to this action, a police officer employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("Calabrese").

17. Defendant John Does 1-5 were, at the time of the incidents giving rise to this action, individuals employed by the NYPD (and Defendant City of New York) in the NYPD's 67th Precinct ("John Does").

18. Defendants Pugliesi, Conwell, Zayas, Villicis, Delgado, Habermehl, Gatto, Rizzo, Delacruz, Chifolo, Calabrese, and John Does are hereinafter referred to, collectively, as the "Individual Defendants."

19. The Individual Defendants were, at the time of the incidents giving rise to this action, acting within the scope of their employment by the NYPD and the City of New York.

20. The Individual Defendants were, at the time of the incidents giving rise to this action, acting under color of state law.

#### **PROCEDURAL REQUIREMENTS REGARDING STATE CLAIMS**

21. Plaintiff has complied, and is continuing to comply, with General Municipal Law Section 50 and all procedural requirements necessary to commence a lawsuit (for state claims) against Defendants.

22. This is an action for the injuries sustained by Plaintiff as a result of various civil rights violations under federal law, along with various violations of New York state law, perpetrated by Defendant City of New York and its employees, the Individual Defendants.

23. On October 4, 2018, a satisfactory Notice of Claim was filed with Defendant City of New York, or its agent(s), on behalf of Plaintiff.

24. On November 14, 2018, a satisfactory Amended Notice of Claim was filed with Defendant City of New York, or its agent(s), on behalf of Plaintiff.

25. Defendant City of New York (and/or its agent(s)) has refused or neglected to make any adjustment or payment on Plaintiff's claims (as stated in Plaintiff's Notice of Claim).

26. Plaintiff commences this action within one year and ninety days of the date of accrual of the instant action.

**FACTUAL ALLEGATIONS**

27. On September 23, 2017, at approximately 9:30 pm, the Individual Defendants violated Plaintiff's constitutional rights by falsely arresting Plaintiff, performing an illegal search, using excessive police force to effectuate the false arrest of Plaintiff, and failing to intervene on behalf of Plaintiff. Defendants are also liable for assault, battery, false arrest, intentional infliction of emotional distress, malicious prosecution, and negligent infliction of emotional distress against Plaintiff as provided by state law

28. On September 23, 2017, at approximately 9:30 pm, the Individual Defendants broke into and searched the apartment in which Plaintiff resides, located at 202 East 52nd Street, Apartment 2F, Brooklyn, NY 11203, and other apartments located within that building. The Individual Defendants gave no warning before entering, did not have a valid warrant to enter, did not have probable cause to enter, and did not have any other privilege to enter. Upon entry into Plaintiff's apartment, when Plaintiff was not home, one or more of the Individual Defendants purposely and maliciously ransacked the apartment and destroyed property.

29. On or about September 23, 2017, at approximately 9:30 pm, the Individual Defendants broke into and searched the basement apartment located at 198 East 52 Street (and other apartments in that building) and struck Plaintiff's husband repeatedly, unprovoked and without cause and in violation of her husband's civil rights, and broke several of her husband's ribs. Plaintiff immediately feared for her safety and the safety of her husband.

30. On September 23, 2017, at approximately 9:30 pm, Plaintiff was arrested and appeared in court multiple times thereafter in connection with false charges, and her husband has since sustained the type of injuries and loss of services consistent with a loss of consortium claim.

31. Plaintiff has suffered psychological and emotional damages as a result of the Individual Defendants' actions, along with damages sustained as a result of a loss of freedom while waiting for arraignment and needless court appearances for an arrest made without probable cause or other legal justification, among other things.

32. This action falls within one or more of the exemptions set forth in CPLR §1602.

**DEMAND FOR JURY TRIAL**

33. Plaintiff demands a trial by jury.

**FIRST CAUSE OF ACTION**

**ASSAULT**

**As Against Defendants**

34. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 33, inclusive, as though fully set forth herein.

35. On September 23, 2017, the Individual Defendants intentionally placed Plaintiff in apprehension of imminent harmful, offensive conduct, and unwanted contact, without justification or privilege.

36. The Individual Defendants' actions caused injuries to Plaintiff, including physical injuries, emotional injuries, loss of freedom, and past and future medical expenses, among other things.

37. The Individual Defendants took the aforementioned actions against Plaintiff during the course, and within the scope, of employment by the NYPD and the City of New York.

38. The aforementioned actions taken by the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

39. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

**SECOND CAUSE OF ACTION**

**BATTERY**

**As Against Defendants**

40. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 39, inclusive, as though fully set forth herein.

41. On September 23, 2017, the Individual Defendants intentionally initiated wrongful and excessive physical contact with Plaintiff without consent, justification, or privilege.

42. The Individual Defendants' actions caused injuries to Plaintiff, including physical injuries, emotional injuries, loss of freedom, and past and future medical expenses, among other things.

43. The Individual Defendants took the aforementioned actions against Plaintiff during the course, and within the scope, of employment by the NYPD and the City of New York.

44. The aforementioned actions taken by the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

45. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

**THIRD CAUSE OF ACTION**  
**LOSS OF CONSORTIUM**  
**As Against Defendants**

46. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 45, inclusive, as though fully set forth herein.

47. On September 23, 2017, the Individual Defendants beat Plaintiff's husband in front of her. They broke his ribs.

48. The injury caused by the Individual Defendants caused Plaintiff's husband to have a diminished capacity to engage in household services (cooking, cleaning, etc.), love, companionship, affection and sexual relations.

49. The aforementioned actions taken by Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

50. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, Defendants, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

**FOURTH CAUSE OF ACTION**  
**FALSE ARREST**  
**As Against Defendants**

51. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 50, inclusive, as though fully set forth herein.

52. On September 23, 2017, the Individual Defendants intentionally arrested and confined Plaintiff without probable cause and without consent.

53. The Individual Defendants' actions caused injuries to Plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.



54. The Individual Defendants took the aforementioned actions against Plaintiff during the course, and within the scope, of employment by the NYPD and the City of New York.

55. The aforementioned actions taken by the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

56. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

**FIFTH CAUSE OF ACTION**  
**INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**  
**As Against Defendants**

57. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 56, inclusive, as though fully set forth herein.

58. On September 23, 2017, the Individual Defendants engaged in extreme and outrageous conduct utterly intolerable in a civilized society when beating Plaintiff's husband in front of her.

59. The Individual Defendants intended to cause, or showed a disregard of a substantial probability of causing, severe emotional distress.

60. The Individual Defendants' actions caused severe psychological/emotional injuries as a consequence of having witnessed the accident.

61. Defendant City of New York is liable for the acts of its agents/employees, including the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment by Defendant City of New York under the doctrine of respondeat superior.

**SIXTH CAUSE OF ACTION**  
**NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**  
**As Against Defendants**

62. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 61, inclusive, as though fully set forth herein.

63. The Individual Defendants have a duty to protect the public and not to physically beat them.

64. The Individual Defendants, though their negligence, put Plaintiff in danger of death or injury.

65. Plaintiff was contemporaneously aware of the serious injury of her husband.

66. The Individual Defendants' actions caused severe psychological/emotional injuries as a consequence of having witnessed the accident.

67. Defendant City of New York is liable for the acts of its agents/employees, including the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment by Defendant City of New York under the doctrine of respondeat superior.

**SEVENTH CAUSE OF ACTION**  
**VIOLATION OF CIVIL RIGHTS – USE OF EXCESSIVE FORCE**  
**As Against the Individual Defendants**

68. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 67, inclusive, as though fully set forth herein.

69. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiff has the right to be free from brutal police conduct and the application of undue or excessive force during the course of an arrest.

70. On September 23, 2017, the Individual Defendants violated Plaintiff's rights when they used undue and excessive force during Plaintiff's arrest without justification or necessity.

71. The Individual Defendants' actions caused injuries to Plaintiff, including physical injuries, severe emotional distress/injuries, loss of freedom, and past and future medical expenses, among other things.

72. The Individual Defendants took the aforementioned actions against Plaintiff during the course, and within the scope, of employment by the NYPD and the City of New York.

73. The Individual Defendants took the aforementioned actions against Plaintiff while acting under color of state law.

74. The aforementioned actions taken by the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

75. Defendant City of New York is liable for the acts of its agents/employees, including the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment by Defendant City of New York under the doctrine of respondeat superior.

**EIGHTH CAUSE OF ACTION**  
**VIOLATION OF CIVIL RIGHTS – FALSE ARREST**  
**As Against the Individual Defendants**

76. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 75, inclusive, as though fully set forth herein.

77. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiff has the right to be free from unreasonable and illegal searches and seizures, including false arrest.

78. On September 23, 2017, the Individual Defendants violated Plaintiff's rights when they intentionally arrested Plaintiff without consent, justification, privilege, or probable cause.

79. The Individual Defendants' actions caused injuries to Plaintiff, including physical injuries, emotional injuries, loss of freedom, and past and future medical expenses, among other things.

80. The Individual Defendants took the aforementioned actions against Plaintiff during the course, and within the scope, of employment by the NYPD and the City of New York.

81. The Individual Defendants took the aforementioned actions against Plaintiff while acting under color of state law.

82. The aforementioned actions taken by the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

**NINTH CAUSE OF ACTION**  
**VIOLATION OF CIVIL RIGHTS – FAILURE TO INTERVENE**  
**As Against the Individual Defendants**

83. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 81, inclusive, as though fully set forth herein.

84. Under the Constitution of the United States of America and 42 U.S.C. 1983, police officers have an affirmative duty to protect citizens by intervening when another police officer violates the citizen's constitutional rights in their presence.

85. On September 23, 2017, Defendants violated Plaintiff's constitutional rights when, in their presence and to their knowledge, Plaintiff was placed under arrest and confined without probable cause, yet none of the Individual Defendants intervened to protect Plaintiff.

86. The Individual Defendants' (in)actions caused injuries to Plaintiff, including physical injuries, emotional injuries, loss of freedom, and past and future medical expenses, among other things.

87. The Individual Defendants took the aforementioned (in)actions against Plaintiff during the course, and within the scope, of employment by the NYPD and the City of New York.

88. The Individual Defendants took the aforementioned (in)actions against Plaintiff while acting under color of state law.

89. The aforementioned actions taken by the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

**TENTH CAUSE OF ACTION**  
**NEGLIGENT HIRING, TRAINING, AND SUPERVISION**  
**As Against Defendant City of New York**

90. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 89, inclusive, except those paragraphs alleging that the Individuals Defendants were acting within the scope of their employment by the NYPD and the City of New York.

91. Defendant City of New York had a duty to adequately hire, train, and supervise its police force before and during the incidents giving rise to this action.

92. Defendant City of New York did not exercise reasonable care and diligence in the selection, engagement, employment, and training of their agents, servants, and employees and were negligent in the hiring, training, and retention of the Individual Defendants, who assaulted, battered, falsely arrested, and violated the civil rights of Plaintiff.

93. Defendant City of New York had prior knowledge of the inappropriate, unlawful, and improper conduct of the Individual Defendants yet continued to employ them and allowed them to be in contact with the public at large.

94. Defendant City of New York breached each of its aforementioned duties, causing injuries to Plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

**PRAYER FOR RELIEF**

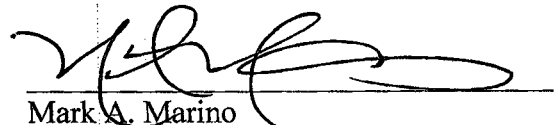
WHEREFORE, Plaintiff seeks judgment in her favor and against Defendants for the following relief:

- a. compensatory damages as against Defendants, jointly and severally, in an amount to be determined at trial;
- b. punitive damages as against Defendants, jointly and severally, in an amount to be determined at trial;
- c. attorney's fees incurred during this action, pursuant to 42 U.S.C. 1988(b), the determination of which lies within the sound discretion of this Court;
- d. costs incurred during this action, pursuant to 42 U.S.C. 1988(b), the determination of which lies within the sound discretion of this Court;
- e. expert fees incurred during this action, pursuant to 42 U.S.C. 1988(c), the determination of which lies within the sound discretion of this Court;
- f. all statutory interest on any sums awarded to Plaintiff; and
- g. such other and further relief as the Court deems proper and fair.

Dated: New York, New York  
December 24, 2018

Respectfully yours,

MARK A. MARINO, PC



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